Showing contexts for: **custody order** in Dr. Sangeeta Vishwakarma @ Sangeeta ... vs Rahul Ranjan on 7 September, 2026

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22. It is thus, evident from bare reading of the provision of Section 12 that the Court has power to make **order** for production of minor and interim protection of person and property only in proceeding for appointing or declaring him guardian. The Court has also been conferred with the power that the Court may direct the person, if any, having the **custody** of the minor shall produce him and may make such **order** for the temporary **custody** and protection of the person or property of the minor as it thinks proper. The wider amplitude has also been asserted in the said provision that depending upon the situation the learned Court may pass an **order** for the temporary **custody** and protection of the person or property of the minor as it thinks proper. Meaning thereby, Section 12 is having wider power being conferred upon the learned Family Judge to be looked into at the ad-interim stage, i.e., for production of the minor or depending upon the situation the temporary **custody** of the minor.

> "14. From the above it follows that an **order** of **custody** of minor children either under the provisions of the Guardians and Wards Act, 1890 or the Hindu Minority and Guardianship Act, 1956 is required to be made by the court treating the interest and welfare of the minor to be of paramount importance. It is not the better right of either parent that would require adjudication while deciding their entitlement to **custody**. The desire of the child coupled with the availability of a conducive and appropriate environment for proper upbringing together with the ability and means of the parent concerned to take care of the child are some of the relevant factors that have to be taken into account by the court while deciding the issue of **custody** of a minor. What must be emphasised is that while all other factors are undoubtedly relevant, it is the desire,

> interest and welfare of the minor which is the crucial and ultimate consideration that must guide the determination required to be made by the court."

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60. This Court is of the considered view that the argument advanced by learned counsel for the respondent carries no force. The issue of **custody** is indeed one to be adjudicated under the conferment of powers contained 2026:JHHC:26921-DB in Sections 7 and 25 of the Guardians and Wards Act, 1890. However, when the mandate of Section 12 has also been expressly incorporated in the statute, its basic purpose is to enable the Court to decide the issue of interim **custody**. It is not open to either party to contend that merely because the lis for permanent **custody** is pending, no **order** may be passed on the issue of interim **custody**.

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61. Once the statutory mandate confers power upon the adjudicator to decide the issue, it is impermissible for any party to urge that, merely because the main lis relating to **custody** is pending, the concerned Court is absolved from passing an **order** on interim **custody**. The conferment of jurisdiction under Section 12 is distinct and independent, and must be exercised when invoked.

62. In the present case, the factual position is otherwise, inasmuch as the learned Family Judge has entertained the petition filed under Section 12 of the Act of 1890, evidence has been laid, and thereafter the impugned **order** has been passed. Thus, the issue of interim **custody** stood squarely before the Court for adjudication.